

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: SMC on June 24, 2026
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: ***Carillo v. Jireh Packing Company***
Superior Court Case No. 24CECG01937

Hearing Date: June 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To deny, without prejudice.

The court sets the matter for a status conference on Tuesday, December 15, 2026 at 3:30 p.m. in Department 403. The parties are to file a declaration regarding the status no later than November 17, 2026.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (*Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 336.)

The court previously vetted the fairness of the settlement through prior hearings, each with its own filings. While the court granted preliminary approval of the class action settlement on January 30, 2026, this was as to an estimated class of 188 members. In this motion for final approval, the class size has dramatically increased by more than double the amount to 436 class members. As the court's preliminary approval as to the fairness of the settlement was based on a significantly smaller class than is now presented, plaintiff will need to address how the same settlement amounts remain fair. Additionally, the court is concerned that the expert also relied on an estimated class of 188 class members in evaluating the claims here. (Berger Decl., filed January 9, 2026, ¶ 7.) In light of this, the court has serious misgivings regarding whether this settlement remains fair. Thus, the motion is denied, without prejudice.

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